

#	Case Name	Tentative
		Defendant contends plaintiff entered into two agreements for arbitration that require the dispute be resolved through arbitration – a lease and the warranty booklet. However, defendant is not a party to the lease, copies of which are attached to the moving papers as Exhibit A and to the opposing papers as Exhibit 1. The lease is between plaintiff and DCH Tustin Acura, which is a dealership. Although defendant contends in the reply that it should be permitted to enforce the arbitration provision in the lease as the assignee of the dealership, the parent company, or a third party beneficiary, the lease has nothing to do with the warranties, which arise independently. As stated by the court in <u>Ford Motor Warranty Cases</u> (2023) 89 Cal.App.5th 1324, 1335, “California law does not treat manufacturer warranties imposed outside the four corners of a retail sale contract as part of the sale contract.” Thus, defendant cannot compel arbitration based on the agreement between plaintiff and DCH Tustin Acura. The court is not persuaded by defendant’s argument that the above holding does not apply to leases. Defendant cannot compel arbitration based on the lease. The other provision for arbitration relied on by defendant is in the warranty booklet, a copy of which submitted by defendant as Exhibit B. However, even if the booklet were given to plaintiff, defendant does not show that plaintiff agreed to the terms of the arbitration provision in the booklet. In other words, defendant has not shown that a contract to arbitrate was formed with the plaintiff simply because plaintiff was given the booklet. Defendant has not met its burden of showing that an agreement to arbitrate the claims in the complaint was entered into by the parties. The motion is DENIED. Defendant shall give notice of this ruling.
56.	Humphrey v. Nissan North America, Inc. 2025-01496999	Defendant Nissan North America, Inc.’s motion to transfer venue is DENIED without prejudice. Defendant seeks to transfer venue to the San Bernardino County Superior Court. Although the notice of motion does not cite any code sections as authority for the motion, defendant’s memo of points and authorities indicates that the motion is brought under

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		subdivision (c) of Code of Civil Procedure section 397. That subdivision authorizes the Court, upon noticed motion, to change the place of trial “[w]hen the convenience of witnesses and the ends of justice would be promoted by the change.” (Defendant also cites subdivision (b) of Code of Civil Procedure section 395, but that code section does not authorize a motion to change venue.) Although declarations in support of a motion for change of venue are not required by statute, the California Supreme Court has articulated the required showing to be made: declarations that name each witness, along with the substance of their testimony, and facts demonstrating why the witness’s attendance at trial will be inconvenient and how justice will be served. <u>Peiser v. Mettler</u> (1958) 50 Cal.2d 594; see also <u>Juneau v. Juneau</u> (1941) 45 Cal.App.2d 14, 16; Cal. Rules of Ct. 3.1306(a). Here, defendant has failed to make the required evidentiary showing. The denial is without prejudice to defendant compiling the requisite evidence, and refiling the motion. The order to show cause is discharged. The trial date is October 18, 2027 at 9:30 a.m. in Department C28. The parties shall comply with this court’s standing order regarding trial preparation. Should any party desire a jury trial, jury fees must be posted 25 calendar days before the trial date. The mandatory settlement conference date is September 17, 2027 at 8:30 in Department C28. Parties are ordered to timely file settlement conference statements. Defendant shall give notice of this ruling.
57.	Williams v. Sevilla Homeowners Association 2021-01183871	Defendants Sevilla Homeowners Association, Optimum Professional Property Management, Inc., and Jason Hohalek’s motion to dismiss the lead case for failure to bring to trial within five years is DENIED. (Code Civ. Proc., § 583.310 [five-year statute]; <i>Brown v. Engstrom</i> (1979) 89 Cal.App.3d 513, 518–519 [“A Partial trial of an action will take the case out of the operation of [former] section 583 ... this does not mean that an issue of law or fact must be finally decided in order for a case to have been ‘brought to trial’ ... partial trial does not mean the complete trial of a single issue ... partial trial occurs if there is a Beginning of a trial;” capitalization in original.]